



Costs Decision

Site visit made on 24 August 2026

by R Gravett BA(Hons) DipTP MRTPI

an Inspector appointed by the Secretary of State

Decision date: 15 September 2026

Costs application in relation to Appeal Ref: 6011231

Caravan, Gravel Farm, 250 Gravel Lane, Banks PR9 8BY

- The application is made under the Town and Country Planning Act 1990, sections 78, 322 and Schedule 6, and the Local Government Act 1972, section 250(5).
 - The application is made by Mr Ashley Warren for a full award of costs against West Lancashire Borough Council.
 - The appeal was against the refusal of planning permission for change of use of 'Barn A' to dwelling and 'Barn B' to ancillary garage.
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Decision

1. The application for an award of costs is allowed in the terms set out below.

Reasons

2. Parties in planning appeals normally meet their own expenses. However, the Planning Practice Guidance (PPG) advises that costs may be awarded against a party who has behaved unreasonably and thereby caused the party applying for costs to incur unnecessary or wasted expense in the appeal process.
3. Unreasonable behaviour can be either substantive (relating to the merits of the appeal) or procedural (relating to the process) in nature. In this case, an application for a full award of costs is made on both substantive and procedural grounds, namely the applicant alleges that (i) the Council sought to prevent development which clearly should have been allowed; and (ii) the Council did not disclose appeal cases on which it relied in making its decision.

Substantive claim

4. An example in the PPG of unreasonable behaviour which may result in a substantive award of costs against a local planning authority is preventing or delaying development which should clearly be permitted, having regard to its accordance with the development plan, national policy and any other material considerations.
5. Neither party has provided 'quantifiable measurements' to the closest local services and facilities within the settlement of Banks, and I am not persuaded that any of the distances which have been given have been deliberately exaggerated by the Council. The Council has made an error in respect of the location of the closest bus stop, which I observed to be close to the entrance of the holiday park on Gravel Lane. However, I have no evidence that this was intentional, or indeed that the existence of this bus stop was disregarded to suit the Council's conclusion.
6. Irrespective of this, the accessibility of the appeal site would not turn on whether the bus stop is exactly 480m away, or whether local facilities and services are

1.6km as opposed 2km away. Rather, the accessibility is a matter of planning judgement based on a range of factors including (but not limited to) the distance to local services and facilities, the topography, the attractiveness and convenience of the route and whether there are any physical barriers along it which would discourage its use.

7. I do not have the plans or Design and Access Statement submitted with the pre-application request before me, but the officer exercised such a judgement based on this information, and the Council's letter of 22 May 2024 was clear that the site was considered to be a 'borderline case' in terms of its accessibility and proximity to services. As they were entitled to do so, an officer later used their own planning judgement and reached a conclusive finding on this matter, based on detailed consideration of the submitted planning application. This conclusion was clearly articulated within the Case Officer Report (COR).
8. Moreover, whilst I have some sympathy for the applicant's frustration, the pre-application advice cannot pre-empt the decision-making process if a formal planning application is subsequently made, irrespective of whether the decision is made under a scheme of delegation or not.
9. I have reached a different conclusion to the Council, but I do not find the Council to have acted unreasonably by preventing or delaying development which should clearly be permitted.

Procedural claim

10. The PPG provides examples of unreasonable behaviour which may result in a procedural award of costs against the Council as including lack of co-operation with the other party or parties; delay in providing information; and only supplying relevant information at appeal when it was previously requested, but not provided, at application stage.
11. The COR stated that 'The Council have had regard to recent appeal decisions within the borough when considering the sustainability of the proposed location of the development.' A list of specific appeal decisions was requested by the applicant after the Council refused planning permission for the proposal, but these were not provided. I appreciate that the Council provided an explanation as to why the exercise would not be undertaken, but given the decisions formed part of the consideration of the application, it is unclear why these were not readily available.
12. Whilst I acknowledge that appeal decisions are publicly accessible and would have otherwise been available to the applicant, failure to provide any information in respect of appeals being relied upon falls short of co-operating with the other party, and it constitutes unreasonable behaviour by the Council. I am not persuaded that the task was as extensive or arduous as alleged by the applicant, but this behaviour nonetheless resulted in additional unnecessary time and cost being incurred. This was in respect of a search of the Appeals Casework Portal for planning appeals determined in West Lancashire between the date of the pre-application response and the Council's decision notice, and a review of those found comparable to the appeal proposal.
13. I therefore find that unreasonable behaviour resulting in unnecessary or wasted expense has been demonstrated, but only to the limited extent described above. A partial award of costs is therefore justified.

Costs Order

14. In exercise of the powers under section 250(5) of the Local Government Act 1972 and Schedule 6 of the Town and Country Planning Act 1990 as amended, and all other enabling powers in that behalf, IT IS HEREBY ORDERED that West Lancashire Borough Council shall pay to Mr Ashley Warren, the costs of the appeal proceedings described in the heading of this decision, limited to those costs incurred in respect of a search and review of planning appeal decisions determined in West Lancashire Borough Council between 22 May 2024 and 23 April 2026; such costs to be assessed in the Senior Courts Costs Office if not agreed.
15. The applicant is now invited to submit to, West Lancashire Borough Council to whom a copy of this decision has been sent, details of those costs with a view to reaching agreement as to the amount.

R Gravett

INSPECTOR